

BY-LAW NO. 6555A By-law to regulate Noise or Sound
within the City of Vancouver

THE COUNCIL OF THE CITY OF VANCOUVER, in open meeting assembled, enacts as follows:

1. This By-law may be cited as the "Noise Control By-law".
2. In this By-law where any abbreviation or technical standard is used but not defined specifically or by context, it shall be interpreted by reference to the definitions and technical standards last published by the Canadian Standards Association (CSA), the American Standards Institute (ANSI), the International Organization for Standardization (ISO), or the International Electro-Technical Commission (IEC), as applicable and, unless the context otherwise requires:

"approved sound meter" means an instrument calibrated to measure levels of sound pressure in accordance with the minimum specifications for type 2 general purpose sound level meters set out under ANSI S1.4 or IEC 123, and includes Bruel and Kjaer's Sound Level Meter Type 2232, 2230, and 2205 as well as Larson-Davis Laboratories Model 700;

"activity zone" means those areas described in Schedule "A" and that portion of the City shown outlined on Schedule "B";

"commercial premises" means premises used to sell or offer to sell goods or services;

"construction" includes the erection, alteration, repair, relocation, dismantling, demolition and removal of a building, structural maintenance, painting, land clearing, earth moving, grading, excavating, the laying of pipe and conduit (whether above or below ground level), street building, concreting and the installation, alteration or removal of construction equipment, components and materials in any form or for any purpose, and includes any work being done in connection therewith;

"continuous sound" means any sound occurring for a duration of more than three minutes, or occurring continually, sporadically or erratically but totalling more than three minutes in any 15 minute period of time;

"Council" means the Council of the City of Vancouver;

"daytime" means from 7 o'clock in the morning (0700 hours) to 10 o'clock in the evening (2200 hours) on any week day or Saturday,

and from 10 o'clock in the morning (1000 hours) to 10 o'clock in the evening (2200 hours) on any Sunday or holiday;

"dBC" means the sound pressure level in decibels measured using the "C" weighting network setting of an approved sound meter and with slow response;

"downtown area" means that area of the City shown outlined on Schedule "C";

"nighttime" means any time not included within the definition of daytime";

"non-continuous sound" means any sound other than continuous sound;

"point of reception" means:

- (a) a point in a lane or street, adjacent to but outside of the property occupied by the recipient of the noise or sound, that represents the shortest distance between that property and the source of the noise; or
- (b) where no lane, street, or other public property exists between the recipient and the source, any point outside the property line of the real property from which the noise or sound emanates; and
- (c) in either case at least 1.2 metres above the surface of the ground;

"power equipment" means any equipment or machinery used in lawn and garden care or in building and property maintenance, and includes but is not limited to leaf blowers, edge trimmers, line trimmers, rototillers, lawnmowers, pressure washers, carpet cleaning equipment, and hand-operated power tools;

"premises" means the area contained within the apparent boundaries of any legal parcel of land and any building situated within such boundaries, provided however that where a building contains more than one unit of commercial, industrial or residential occupancy each unit, the common areas of the building, and the land within the apparent boundaries of the lot, shall each be deemed to be separate premises;

"quiet zone" means any portion of the City not defined as an activity zone;

"residential premises" means any parcel of real property utilized primarily for residential accommodation, and includes hotels and motels;

"slow response" means the pre-determined setting of a sound level meter, which setting meets the minimum specifications set out in ANSI S1.4 or IEC 123;

"sound level" means the sound pressure level in decibels measured using the "A" weighting network setting of an approved sound meter and with slow response.

3. No person shall make or cause, or permit to be made or caused, any noise or sound in a street, park or similar public place which disturbs or tends to disturb unreasonably the quiet, peace, rest, enjoyment, comfort or convenience of persons in the neighbourhood or vicinity.

4. Notwithstanding any other provision of this By-law the following are declared by Council to be noises or sounds which are, in its opinion, objectionable or liable to disturb the quiet, peace, rest, enjoyment, comfort or convenience of individuals or the public and are hereby prohibited, and no person being the owner or occupant of any premises shall make, cause, allow, or permit:

- (a) the noise resulting from a gathering of two or more persons at any time, where one or more human voice is raised beyond the level of ordinary conversation, or
- (b) the sound of a radio, television, player or other sound playback device, public address system, or any other music or voice amplification equipment, musical instrument, whether recorded or live, whether amplified or not, provided that the sound does not emanate from a commercial premises, or
- (c) the sound of a barking dog or the cry of an animal or bird,

which can easily be heard by an individual or member of the public who is not on the same premises, notwithstanding that such noise or sound might not constitute a breach of any other provision of this by-law.

5. No person shall in a quiet zone make, cause or permit to be made or caused, continuous sound the sound level of which:

- (a) during the daytime exceeds a rating of 55 on an approved sound meter when received at a point of reception within a quiet zone, or 60 on an approved sound meter when received at a point of reception within an activity zone; or
- (b) during the nighttime exceeds a rating of 45 on an approved sound meter when received at a point of reception within a quiet zone, or 55 on an approved sound meter when received at a point of reception within an activity zone.

6. No person shall in an activity zone make, cause or permit to be made or caused, continuous sound the sound level of which:

- (a) during the daytime exceeds a rating of 70 on an approved sound meter when received at a point of reception within an activity zone, or 60 on an approved sound meter when received at a point of reception within a quiet zone; or
- (b) during the nighttime exceeds a rating of 65 on an approved sound meter when received at a point of reception within an activity zone, or 55 on an approved sound meter when received at a point of reception within a quiet zone.

7. No person shall in an activity zone or a quiet zone make, cause, or permit to be made or caused, non-continuous sound the sound level of which during the daytime exceeds a rating of 75 on an approved sound meter, or during the nighttime exceeds a rating of 70 on an approved sound meter when received at the point of reception.

8. Sections 3, 5, 6 and 7 of this By-law shall not apply to noise or sound created:

- (a) as a consequence of the construction, demolition, repair, cleaning, or other maintenance of any building, street, sewer, water main, electrical duct, or other public utility; or
- (b) by the sound of church bells, chimes, or carillons, whether amplified or not; or
- (c) as a consequence of the lawful testing of an emergency generator provided that it is not operated more than once a week during the daytime, and for a maximum of 30 minutes, and its continuous sound level does not exceed a rating of 80 on an approved sound meter when measured at the point of reception or at least 6.1 metres from its source, whichever is the greater.

9. Noise or sound emanating from a source on a street shall, for the purposes of sections 5, 6, and 7, be deemed as emanating from an activity zone and shall be measured at the point of reception or at least 6.1 metres from the source of the noise or sound, whichever is the greater.

10. Where noise or sound emanating from a source on a parcel of real property is received on a street, the street shall be deemed to be an activity zone, and the noise or sound shall, for the purposes of sections 5, 6, and 7, be measured at the point of reception or at least 6.1 metres from the source of the noise or sound, whichever is the greater.

11. No person shall in any commercial premises make, cause, or permit to be made or caused continuous or non-continuous noise or sound of a radio, television, player or other sound playback device, public address system, or any other music or voice amplification equipment,

musical instrument, whether recorded or live, whether amplified or not, the level of which during the daytime exceeds a rating of 70 dBC on an approved sound meter, or during the nighttime exceeds a rating of 65 dBC on an approved sound meter when measured at any point outside the property line of the property from which the noise or sound emanates.

12. (a) No person shall in a commercial premises make, cause, or permit to be made or caused continuous or non-continuous noise or sound of music whether recorded or live, whether amplified or not, the sound level of which exceeds a rating of 90 on an approved sound meter when measured within the premises at a distance of not less than 6.1 metres from the source unless a notice in the form prescribed in clause (b) is posted in a prominent location at the entry to the premises.
- (b) The notice referred to in clause (a) shall contain the following information:
 - (i) the word "CAUTION" in bold face, followed by the words "THE SOUND LEVEL WITHIN THESE PREMISES MAY BE HAZARDOUS TO YOUR HEARING" in capital letters; and
 - (ii) the symbol shown on Schedule "D";
 and shall be constructed so that:
 - (iii) it is rectangular in shape;
 - (iv) it is at least 15 cm high and 30.5 cm wide;
 - (v) the lettering for the word "CAUTION" is at least 2 cm high and in red and for the balance of the script is at least 1 cm high and in any colour which contrasts with the background; and
 - (vi) the symbol is at least 10 cm high.

13. Notwithstanding any provision of this By-law, a person may make or cause a noise or sound which exceeds the sound levels set out in this By-law when performing works of an emergency nature for the preservation or protection of property, life or health.

14. Notwithstanding any provision of the By-law, a person may make or cause a noise or sound which exceeds the sound levels set out in this By-law, provided the sound level does not exceed a rating of 87 on an approved sound meter when received at a point of reception and the noise or sound is made or caused:

- (a) by the use or operation of power equipment during the daytime; or

- (b) by the use or operation of beach screening equipment by the Vancouver Park Board.

15. Notwithstanding any provision of this By-law, except as provided in section 16, no person shall carry on any construction, or operate any kind of tool, machine, or engine, to the disturbance of the quiet, peace, rest, or enjoyment of the public, except between the hours of 7 o'clock in the morning (0700 hours) to 8 o'clock in the evening (2000 hours) on any week day or Saturday, and between 10 o'clock in the morning (1000 hours) to 8 o'clock in the evening (2000 hours) on any Sunday or holiday.

16. Notwithstanding section 15, on any week day the moving of material or equipment onto or off of a construction site may commence at 6:30 o'clock in the morning (0630 hours).

17. (a) In any case where it is impossible or impractical to comply with sections 15 or 16 an application, in the form prescribed in clause (b) may be made to the Mayor for an exception, and the Mayor may give his consent in writing to carry on any such works outside the prescribed limits and upon such terms as he determines.

(b) The application noted in clause (a) shall be in writing and submitted to the Mayor at least five working days prior to the date of the proposed activity, and shall contain:

- (i) the name, address, and telephone number of the applicant;
- (ii) the address of the site of the works;
- (iii) the building permit number, if applicable;
- (iv) the reason(s) the exception is sought;
- (v) a description of the source(s) of noise in respect of which the exception is sought;
- (vi) the exact period of time for which the exception is desired;
- (vii) the reason(s) why the exception should be given; and
- (viii) a statement of the measures planned or presently being taken to minimize the sound or noise.

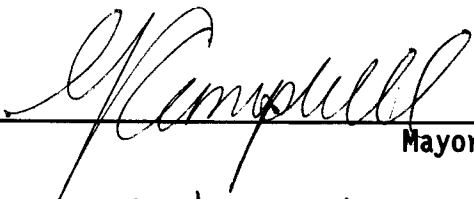
18. No person shall maintain, possess, or use a security system, burglar alarm, or other device equipped with an audible alarm which sounds on the premises or real property and is intended to direct attention to trespass or an unlawful act unless such system is:

- (a) provided with an operating automatic shut-off device which stops the audible alarm sound within 15 minutes and permits the audible alarm system to sound only a maximum of 3 (three) times in a 24 hour period of time; or
 - (b) approved by the Chief Constable or a person authorized to act on his behalf.
- 19. No person shall carry on works in connection with the collection of refuse from a bulk refuse container of a capacity of 1 cubic yard or greater in or adjacent to a residential premises:
 - (a) outside the downtown area except from 7 o'clock in the morning (0700 hours) to 8 o'clock in the evening (2000 hours) on any week day, or from 10 o'clock in the morning (1000 hours) to 8 o'clock in the evening (2000 hours) on any Saturday, Sunday, or holiday; or
 - (b) inside the downtown area except from 6 o'clock in the morning (0600 hours) to 12 o'clock in the evening (2400 hours) on any week day, or from 10 o'clock in the morning (1000 hours) to 12 o'clock in the evening (2400 hours) on any Saturday, Sunday, or holiday.
- 20. (a) Every person who violates any of the provisions of this By-law or who suffers or permits any act or thing to be done in contravention or in violation of any of the provisions of this By-law, or who neglects to do or refrains from doing anything required to be done by any of the provisions of this By-law, or who does any act which violates any of the provisions of this By-law, is guilty of an offence against this By-law and liable to the penalties hereby imposed. Each day that a violation is permitted to exist shall constitute a separate offence.
- (b) Every person who commits an offence against this By-law is liable to a fine and penalty of not more than \$2,000.00 and not less than \$50.00 for each offence or, in the alternative, to imprisonment for any period not exceeding two months.
 - (c) Every person who commits an offence of a continuing nature is liable to a fine not exceeding \$50.00 for each day such offence is continued.
- 21. It is the intention of the Council that each separate provision of this By-law shall be deemed independent of all other provisions herein and if any provisions of this By-law be declared to be invalid, all other provisions thereof shall remain valid and enforceable.
- 22. Schedules "A", "B", "C" and "D" which are attached hereto are an integral part of this By-law.

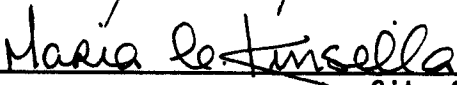
23. By-laws No. 4984 and 5330 are hereby repealed.

24. This By-law comes into force and takes effect on the date of its passing, except for section 12 which shall come into force and take effect on November 1, 1989.

DONE AND PASSED in open Council this 12th day of
September, 1989.



Mayor



City Clerk

Schedule A

Activity Zone

The following Districts, which are more particularly described in the Zoning and Development By-law of the City of Vancouver, constitute part of the activity zone:

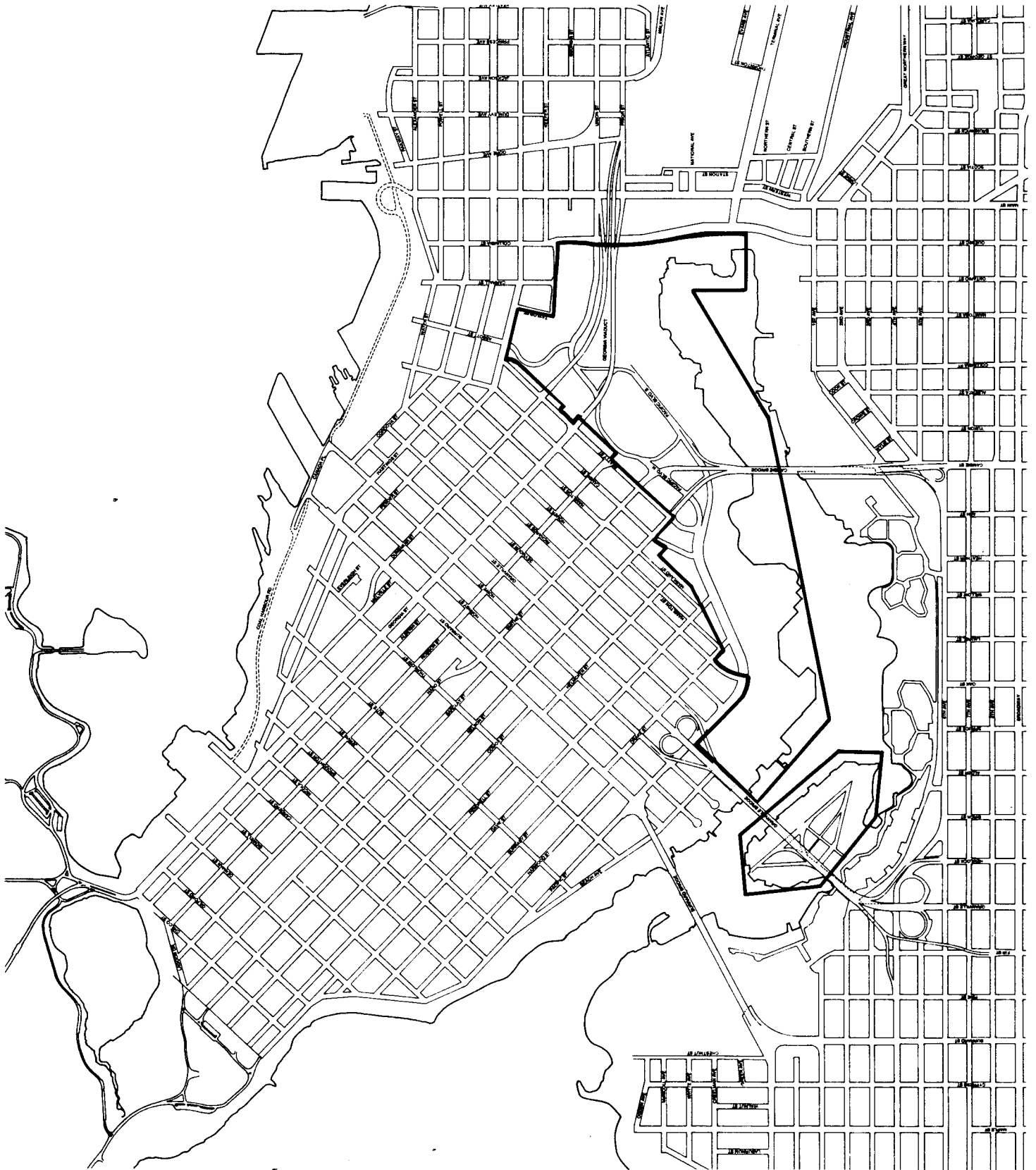
C-1
C-2
C-2B
C-2C
C-2C1
C-3A
C-5
C-6
FC-1
MC-1
M-1
M-1A
M-1B
M-2
IC-1
IC-2
IC-3
I-1
HA-1
HA-2
HA-3
HA-4
DD
CWD
DEOD

and those CD-1 Districts identified below by the by-law which created them:

<u>By-law Number</u>	<u>Approximate Location</u>
3568	5733 Cambie
3656	PNE
3865	1300-1600 S.E. Main
4296	400 Keefer
4446	900 King Edward
4550	3100 E. 58th
4559	400 Great Northern Way
4828	1260 Nanaimo
4861	2200 East 30th
5060	1800 Skeena
5407	1155 E. Broadway
5683	650 W. Georgia

5705	2678 W. Broadway
5773	1095 W. Pender
5818	3033 Cambie
5834	1570 Kootenay
5836	2410 E. Broadway
5852	1020 Harwood
5997	1060 Alberni
6040	3075 Slocan
6041	2610 Grandview
6057	322-424 Drake
6070	777 W. Broadway
6221	1000 Beach
6254	1700 Block W. 75th Ave.
6260	1262 Howe
6263	738 Broughton
6272	3300 Vanness
6313	4100 Nanaimo & W. 26th Ave.
6318	4500 Earles
6319	4700 Manor
6322	3200 Vanness
6363	3200 Vanness
6420	891 Burrard
6421	949-953 Hornby
6423	3185 Grandview
6427	Prior and Hawks
6428	1500 Alberni
6429	2060 W. 10th Ave.
6448	131 W. Pender
6475	Riverside East
6486	1275 Burrard
6533	Riverside East

Schedule B
Activity Zone



Schedule D

